Harbourline Freight Pty Ltd Enterprise Agreement 2023

Extract 3 of 3: discipline, notice of termination and redundancy (AG2023/1982)

Clause 29 Discipline

29.1 Before dismissing or disciplining an employee for misconduct, the employer must give the employee written particulars of each allegation and a reasonable opportunity to respond.

29.2 A reasonable opportunity is not less than 3 working days from the date the written allegations are given. The employee may have a support person present.

29.3 If an allegation is amended, the employer must give the employee a fresh opportunity to respond to the amended allegation of not less than 3 working days.

29.4 An employer may dismiss without notice for serious misconduct, but only after complying with clauses 29.1 to 29.3.

Clause 30 Notice of termination

Completed service	Notice
Less than 1 year	1 week
1 year but less than 3 years	2 weeks
3 years but less than 5 years	4 weeks
5 years or more	5 weeks

30.2 An employee over 45 years of age with at least 2 years of service is entitled to one additional week of notice.

30.3 Notice is not required where an employee is dismissed summarily for serious misconduct in accordance with clause 29.

Clause 31 Redundancy pay

Completed service	Redundancy pay
Less than 1 year	Nil
1 year but less than 2 years	4 weeks
2 years but less than 3 years	6 weeks
3 years but less than 4 years	8 weeks
4 years but less than 5 years	10 weeks
5 years or more	12 weeks

31.2 A week of redundancy pay is calculated at the employee's ordinary rate for 38 hours. Redundancy pay is not payable where the employee is dismissed for misconduct.